

Credibility Gap

THEN

In his petition before the sc, Nanumiya Malek, a key witness in the Naroda Gam case, says that a married woman called Madina had been raped by rioters.

NOW

Malek later told the sir that Madina's rape was an accusation put forth at the behest of Teesta Setalvad. Madina also denied the charge.

THEN

For the past eight years, human rights activists and Naroda Patiya victims have alleged that the rioters ripped open the womb of the pregnant Kausarbanu.

NOW

Dr J.S. Kanoria, who conducted a post-mortem on Kausarbanu's body, says she died of burns during the riot and that her womb was intact.

THEN

While reinvestigating the Gulberg case, the sir comes across nearly 20 witnesses who came with their readymade, typed statements to which the sir objects.

NOW

The Muslim witnesses refuse to videotape their statements. The statements that are recorded by the sir do not match the readymade statements.

THEN

Imtiaz Pathan, a key witness in the Gulberg case, tells the special court that Ehsan Jafri was abused by Modi when Jafri called the latter seeking his help during the riots.

NOW

The sir has not been able to find any evidence or a record of Ehsan Jafri making a phone call to Narendra Modi.

THEN

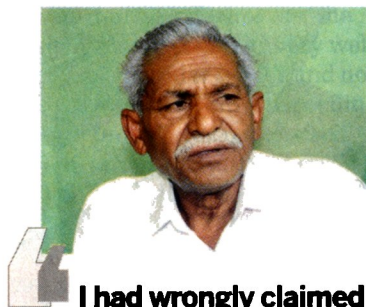
In their 2003 sc petition, Muslim witnesses accused the rioters of raping women. As a result, the trials of nine major cases were stalled for over six years.

NOW

In their statements made before the sc-appointed sir, the witnesses haven't accused the rioters of raping women.

affidavit, yet it was included." In her statement before the sir on May 20, 2008, Madina, who has remarried now, said: "The charge made by Malek claiming that I was raped by a riotous mob is false. I wasn't raped. When the riotous mob put my house on fire, I tried to run but was attacked by a rioter who injured me with a knife. Later I managed to merge in a Muslim crowd."

There are six other affidavits filed by different Muslim witnesses on November 15, 2003, that wantonly allege rape in the Naroda Gam and Naroda Patiya riot cases without giving any details. Interestingly, all the affidavits have a uniform language: "Over 110 persons were not simply killed, but raped and mutilated as well, including young children. We urge the sc to stay the trials and transfer them to a neighbouring state and also order fresh investigation." The affidavits state that they had been filed at the be-



I had wrongly claimed that Madina was raped. I made the charge because of Teesta Setalvad's pressure.

NANUMIYA MALEK

hest of Setalvad and in the presence of her co-activist Rais Khan.

If this wasn't enough, other glaring attempts by human rights activists to tutor witnesses have come to the fore. For example, soon after the Gulberg massacre in which Ehsan Jafri was killed, nearly a dozen

Muslim witnesses told the police that Jafri had fired in self-defence, killed a rioter and injured 14 others. They also said that this led the mob to resort to violence and attack Muslims in Gulberg with vengeance. But almost half of them who deposed before the special court have retracted from this statement.

The statement of Imtiaz Pathan in the Gulberg trial also raises eyebrows. He told the special court that before being killed, Jafri told him that Narendra Modi abused him (Jafri) on phone when he sought protection during a mob attack. Incidentally, there is no record available of Jafri having made any call to Modi. Pathan didn't name Modi in the first police statement he made soon after the riots. Interestingly, he has also identified as many as 27 individual attackers from a mob of thousands of rioters.

When the sir started taking statements of witnesses in the Gulberg Society case, around 20 witnesses came with typed statements. But the sir objected to it, citing Section 161 of the CrPC, saying that the police must record the statement of a witness. So when the sir forced the witnesses to give their statement during the interrogation, there was a vast difference between the 'readymade typed' statements and the oral evidence that the police had received earlier. As a senior lawyer defending the accused puts it: "The witnesses under the influence of the human rights activists didn't allow videotaping of their statements while they were being recorded. There is an obvious attempt on the part of activists to dictate not just the sir, but also the courts." Last week, INDIA TODAY quizzed Setalvad about the charge of tutoring the witnesses and creating false evidence before the courts in the 2002 Gujarat riot cases. Her response: "I am under no obligation to respond to your questions." The human rights activists' band seems to believe that one side's suffering is greater than the other's. ■